

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
TODD RIVERS,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAREN
URENA, POLICE OFFICER ANTHONY DIAZ, POLICE
OFFICER BRANDON TAVERAS, POLICE OFFICER
ANDREW ALI, SERGEANT KEVIN GALLAGHER, and
POLICE OFFICERS JOHN DOES 1 through 10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Index No.

The Basis of Venue is:
Location of Incident

Plaintiff designates Queens County
as the place of trial.

Defendants.
-----X

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 16, 2023
Hauppauge, New York

Yours, etc.,

The Law Office of Joseph Indusi, PLLC



Christopher P. Gerace, of Counsel
400 Townline Road, Suite 100
Hauppauge, New York 11788
Phone: (631) 921-7464
chris@josephindusilaw.com

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER DAREN URENA, Tax ID No. 965580, 108th Precinct, 547 50th Avenue, Queens, NY 11101

POLICE OFFICER ANTHONY DIAZ, Tax ID No. 954730, 108th Precinct, 547 50th Avenue, Queens, NY 11101

POLICE OFFICER BRANDON TAVERAS, Tax ID No. 972981, 108th Precinct, 547 50th Avenue, Queens, NY 11101

POLICE OFFICER ANDREW ALI, Tax ID No. 957324, 108th Precinct, 547 50th Avenue, Queens, NY 11101

SERGEANT KEVIN GALLAGHER, Tax ID No. 952758, 108th Precinct, 547 50th Avenue, Queens, NY 11101

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
TODD RIVERS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAREN URENA, POLICE OFFICER ANTHONY DIAZ, POLICE OFFICER BRANDON TAVERAS, POLICE OFFICER ANDREW ALI, SERGEANT KEVIN GALLAGHER, and POLICE OFFICERS JOHN DOES 1 through 10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Index No.

Defendants.
-----X

Plaintiff, TODD RIVERS, by his attorney, the Law Office of Joseph Indusi, PLLC, complaining of the Defendants, sets forth and alleges upon information and belief as follows:

1. Plaintiff TODD RIVERS ("Plaintiff") is an individual residing in the State of New York, County of Queens.
2. POLICE OFFICER DAREN URENA, Tax ID No. 965580, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, assigned to the 108th Precinct.
3. POLICE OFFICER ANTHONY DIAZ, Tax ID No. 954730, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, assigned to the 108th Precinct.
4. POLICE OFFICER BRANDON TAVERAS, Tax ID No. 972981, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, assigned to the 108th Precinct.

5. POLICE OFFICER ANDREW ALI, Tax ID No. 957324, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, assigned to the 108th Precinct.

6. SERGEANT KEVIN GALLAGHER, Tax ID No. 952758, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, assigned to the 108th Precinct.

7. Defendant Police Officers JOHN DOES 1 through 10 are and were at all times relevant herein, officers, employees, and agents of the New York City Police Department, assigned to the 108th Precinct.

8. Each of foregoing defendants are being sued in their individual and official capacity.

9. At all times relevant herein, the individual defendants (collectively the “Defendant Police Officers”), were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York (“City of New York”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is

ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action filed a timely Notice of Claim against the City of New York, in compliance with Municipal Law Section 50.

12. In accordance with New York State Law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 26, 2022.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602 involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all lower Courts of the State of New York.

STATEMENT OF FACTS

16. On May 3, 2022, plaintiff, a homeless veteran, was lawfully present inside of the veteran's homeless shelter located at 21-10 Borden Avenue, County of Queens, State of New York.

17. While plaintiff was in front of the vending machine in the cafeteria, he was unlawfully attacked by another resident of the shelter (the "assailant").

18. At the time of the attack, the assailant was armed with a sock that contained a

“pool ball,” a dangerous and deadly weapon.

19. The assailant struck plaintiff in the back of the head using the dangerous and deadly weapon, causing pain and suffering to the plaintiff, including, but not limited to, swelling to the back of plaintiff’s head.

20. After being struck in the back of the head with a dangerous and deadly weapon, plaintiff was able to successfully defend himself against the assailant, having subdued and restrained the assailant until help could arrive.

21. Plaintiff did not initiate, instigate, cause, or otherwise, provoke the random and violent attack against him.

22. Although Plaintiff was the victim of a crime, when the Defendant Police Officers arrived at the scene, they unlawfully detained, frisked, searched, and arrested the plaintiff.

23. The attack on plaintiff was captured by video surveillance inside of the shelter.

24. Prior to plaintiff’s unlawful arrest, body cameras worn by the Defendant Police Officers shows the Defendant Police Officers viewed the surveillance video showing plaintiff as the victim of an unprovoked and violent attack.

25. Upon reviewing the video surveillance, no reasonable police officer could believe that plaintiff’s act of self-defense was illegal under any New York State statute and/or penal law.

26. In another exchange captured on the Defendant Police Officers’ body cameras, the Defendant Police Officers advised plaintiff that they agreed he acted in self-defense but were required to arrest plaintiff due to “protocol.”

27. At no time did plaintiff commit a crime, nor did the Defendant Police Officers have probable cause or reason to believe he committed a crime.

28. At no time did the Defendant Police Officers recover any unlawful weapons, drugs, or illegal contraband of any kind from plaintiff.

29. Defendants did not have an objective factual basis to believe the plaintiff committed a crime or violated the law in any way.

30. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested by the Defendant Police Officers without legal justification or probable cause.

31. At no point in time did plaintiff resist arrest in any way and did not assault any Defendant Police Officer in any way.

32. Plaintiff was transported by the Defendant Police Officers to the 108th Precinct against his will, where he was photographed, fingerprinted, searched and then placed in a holding cell by the defendants.

33. The defendants initiated a prosecution against plaintiff, without probable cause by (a) telling the District Attorney's Office false, incomplete, and misleading information regarding the basis for their arrest of plaintiff and (b) by signing a sworn misdemeanor complaint which contained false, misleading, and incomplete allegations against plaintiff.

34. The defendants' false accusations against plaintiff included, but were not limited to, their allegation that plaintiff unlawfully assaulted and obstructed the breathing or blood circulation of the assailant, a violation of P.L. §§ 120.00(1) and 121.11(b), and possessed a pipe containing a quantity of cocaine, a violation of P.L. § 220.03.

35. After approximately 20 hours in custody, plaintiff was arraigned and released

on his own recognizance.

36. Plaintiff was forced to return to court on May 26, 2022, at which time all charges were dismissed and sealed in their entirety.

37. Some of the Defendant Police Officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, false imprisonment, malicious prosecution, and denial of due process and the right to a fair trial against plaintiff.

38. The unlawful search, false arrest, and false imprisonment, malicious prosecution, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment
and Fourteenth Amendment Rights

39. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

40. Defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

42. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. The defendants intended to confine plaintiff and, in fact, confined plaintiff and plaintiff was conscious of his confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. The defendants were at all times agents, servants, and employees acting within the scope of the employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

46. The City of New York, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION**Unlawful Stop, Question, and First**

48. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally

applied.

50. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. The defendants were at all times agents, servants, and employees acting within the scope of the employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

53. The City of New York, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

56. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. The defendants were at all times agents, servants, and employees acting within

the scope of the employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

60. The City of New York, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

62. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

63. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

64. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

65. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

66. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free from deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

67. As a result of the foregoing, plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of the employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

69. The City of New York, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Malicious Prosecution

71. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

72. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State Common Law.

73. Defendants commenced and continued a criminal proceeding against plaintiff.

74. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

75. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

76. Defendants were at all times agents, servants, and employees acting within the

scope of the employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

79. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

80. The defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. The defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a direct and proximate result of such acts, the defendants deprived Plaintiff of his rights under the laws of the United States Constitution and the State of New York.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. Defendants were at all times agents, servants, and employees acting within the scope of the employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City of New York, as the employer of the officer defendants, is responsible

for their wrongdoing under the doctrine of respondeat superior.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

87. Plaintiff repeats, realleges and reiterates each of the foregoing paragraphs as if fully set forth herein.

88. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

WHEREFORE, plaintiff demands judgment against the defendants on each respective cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees, inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: April 16, 2023
Hauppauge, New York

Yours, etc.,
The Law Office of Joseph Indusi, PLLC



Christopher P. Gerace, of Counsel
400 Townline Road, Suite 100
Hauppauge, New York 11788
Phone: (631) 921-7464
chris@josephindusilaw.com

ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF SUFFOLK)

I, CHRISTOPHER P. GERACE, am an attorney duly admitted to practice in the courts of the State of New York and am of counsel to the law firm the Law Office of Joseph Indusi, PLLC, attorneys for plaintiff Todd Rivers in this action; that the foregoing **SUMMONS AND COMPLAINT** is true to the knowledge of deponent except as to those matters therein stated to be alleged on information and belief, and as to those matters, he believes to be true.

Deponent further says that he has his office in Hauppauge, Suffolk County, New York and the reason why this verification is made by deponent and not said Plaintiff is that said Plaintiff is not within the County of Suffolk where Deponent has his office.

The sources of Deponent's information and belief are the investigation of this case, review of video and other documents, and conversations with Plaintiff.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: April 16, 2023
Hauppauge, New York

Yours, etc.,

The Law Office of Joseph Indusi, PLLC



Christopher P. Gerace, of Counsel
400 Townline Road, Suite 100
Hauppauge, New York 11788
Phone: (631) 921-7464
chris@josephindusilaw.com

ATTORNEY CERTIFICATION

I certify that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the foregoing paper or the contentions therein are not frivolous as defined in subsection c of Section 130-1.1 of 22 NYCRR.

Dated: April 16, 2023
Hauppauge, New York

Yours, etc.,

The Law Office of Joseph Indusi, PLLC



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